

## 24PR00590 Matter of Wilbur Masonheimer

County: santa-barbara

Division: Property Spouse Lacks Capacity

Department: 4 SM-Cook

Hearing date: 2026-08-17

Motion: Petition for Order Authorizing Particular Transaction

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Tentative Ruling: Matter of Wilbur Masonheimer

Case Number

24PR00590

Case Type

Property Spouse Lacks Capacity

Hearing Date / Time

Mon, 08/17/2026 - 08:30

Nature of Proceedings

Petition for Order Authorizing Particular Transaction

Tentative Ruling

Probate Notes:

Appearances required.

On October 11, 2024, Julie Masonheimer filed a Petition to Authorize a Particular Transaction, requesting the Court create a trust for the benefit of her husband, Wilbur Masonheimer. After several hearings with probate notes pointing out that the requested trust left Wilbur too exposed without proper safeguards in place, the Court finally approved a trust with proper safeguards in place.

Seemingly ignoring the Court's concerns from the last petition, Julie Masonheimer now requests another Order Authorizing a Particular Transaction that will have the same effect as the previous iterations of the trust that the court rejected.

The Court should deny the petition, because the proposed transactions, again, do not protect the spouse who lacks capacity from acts that would cause a loss to his portion of the community property, exposing Wilbur to the potential for neglect, abuse, etc.

In fact, it appears that Wilbur Masonheimer's condition has deteriorated to the point that a conservatorship may be the least restrictive means of protecting Wilbur's interests in the community estate.

Like the previous request to establish a trust that benefits only Petitioner, the four requests proposed in this petition will only benefit the Petitioner, save the proposed transaction #4 for support, which cannot be enforced with the Petitioner mismanages the estate. The proposed transactions contain no protections to ensure the spouse who has capacity does not mismanage the community property to the detriment of the spouse who lacks capacity, because it gives all control of the community property at issue to the well-spouse, with ZERO court oversight.

As noted before, Petitioner's rationale as to why the subject property should be transmuted is unpersuasive, and unsupported by law. Petitioner again seeks to avoid court intervention, which at this point is not advisable due to the condition of Wilbur.

Elderly, incapacitated persons are the most vulnerable persons in our society. This was highlighted in the legislative history of the most recent changes to the conservatorship statutes in California by citation in that history to various exposés in California publications that highlighted how the elderly were losing everything they worked for at the end of their lives through loopholes in the system, before concluding: "While California has specific laws to prevent this from happening here, without vigorous court oversight of conservatorships, it is not impossible that such abuses could be happening in California today." (Stone, Chrmn. Mark, Assemb. Com. On Jud., AB 1194, Apr. 21, 2021.)

Additionally, the petition fails to meet the legal standard upon which a court order authorizing a particular transaction may be granted. According to Probate Code section 3122, the following are authorized reasons:

For the advantage, benefit, or best interests of the spouses or registered domestic partners or their estates.

For the care and support of either spouse or registered domestic partner or one of their legal dependents.

For the payment of taxes, interest, or other encumbrances or charges for the protection and preservation of the community property.

For gifts or estate planning such as would be made in a conservatorship under substituted judgment.

(Prob. Code, §3122, subds.(d)(1-4).)

On the evidence before the Court, there is no legitimate purpose to strip the property rights from the incapacitated spouse by transmuting the subject property. If the Court granted the petition as presented, it would not be the least restrictive means of protecting the interests of the incapacitated spouse, because the incapacitated spouse will have no right to any funds in the financial accounts at issue, other than a support payment. It does not matter that the incapacitated spouse may not ever realize those rights are gone, or ever have the capacity to 'enjoy' those rights in the future. What matters is that the incapacitated spouse has a right to those assets so they can be used to provide for the incapacitated spouse in the event someone else (i.e. a conservator/agent under a Power of Attorney) becomes necessary to manage the estate of the incapacitated spouse in the future.

The petition is, therefore, recommended for denial.

Judges

Judge Jed Beebe

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